This Master Services Agreement is presented to:

Catalyst Medical Education, LLC

Blue Sky eLearn (BSE), the leader in online learning and virtual event solutions, proposes the following scope of work. This proposal package contains the following:

- A description of the statement of work
- Pricing
- Terms and Conditions of the contract

Date Created: March 18, 2019

Pricing in this agreement is valid for 30 days.

Statement of Work:

Blue Sky eLearn proposes to offer the following products and services to Catalyst Medical Education, LLC on an annual subscription basis.

Path Setup - Standard

Blue Sky eLearn will create a custom-branded Path site for Catalyst Medical Education, LLC . This will include:

- Kick-off Call
- Activation of Path LMS license
- Dedicated Project Manager who will assist with setup for up to 30 days from commencement of project. The Project Manager can also be available for additional projects at an additional fee.
- One 30-minute training call per week during first 30 days
- Creation of one course (or sample course)
- Bulk upload of users (if applicable)
- Review Path documentation
- Assisting in Merchant Setup and Test Order (if applicable)
- Path LMS Ask the Expert Ongoing Webinars
- SSO Integration Project Tracking - (API)

Catalyst Medcial Education will have the Gold tier which allows for 2,500 learners (Bulk 22,500 over a 9-month period) per and 100 videos uploaded. Should Catalyst Medical Education exceed the video limit or users, overages will apply.

Path LMS Enterprise

Standard Features:

- Advanced Search
- Bulk Content Import Tools
- Certificate Builder
- Content Categorization
- Course Builder
- Custom Branding
- Discussion Boards
- Drag & Drop Admin Interface
- Event Library
- Google Analytics Integration
- Group Permissions
- Mobile Friendly / Responsive Design
- Multiple Languages
- Reporting Dashboard
- RSS Feed
- Social Media Sharing
- Surveys
- Testing
- Two-way API

Standard Services:

- Automatic Platform Upgrades
- Path Documentation
- Access to Unlimited Storage
- Activation and Path Configuration
- Configuration of User Groups and Association System and Page Permissions
- Creation of Registration Form for Site Access
- Email and Chat Support for Path Admins
- Integration of a Compatible Payment Processer
- Responsive Website Configured to your Organization's Branding

Virtual Events Package:

- Customizable Event Email Engine
- Event Registration & Purchase Synchronization with AMS Support*
- Integration with Adobe Connect or GoToMeeting
- Live Webcasting*
- Live Webinar Capabilities*
- Powerful Event Registration Engine
- Webinar Attendance & Reporting Integration

Member Success Package:

- Advanced Integration Activity Logging
- Insightful Reporting
- Integration with Major AMS Platforms*
- Learning/Networking Community Capabilities (w/Higher Logic)*
- Usage Analytics (Google)
- Dedicated Client Success Manager
- Email, Chat, and Phone Support for Path Admins

Revenue Generator Package:

- Discounts and Promo Codes
- eCommerce
- Path Video GO
- Pricing Tiers
- Product Bundles
- Purchase Credits/Gift Cards

Advanced Learner Package:

- Bulk Assessment Importers
- Gamification through Higher Logic*
- Learning Standards Support* (SCORM/AICC with Scorm Cloud™
- Question Pools/Banks
- Timed Testing
- Tin Can/xAPI Support*
- Access to our Product Insiders Group

Enterprise Package:

- Custom Integration Capabilities
- OKTA and SAML 2.0 Support*
- Website Embed
- Corporate/Invoice Purchasing

*May incur additional costs

eManaged Webinars:

Blue Sky eLearn's eManaged Webinars Include:

- Live webinars include the following services:
  - Professional moderator with customized script
  - Technical and customer support desk for attendees
  - Dedicated webinar project manager
  - Event back ups and redundancies
  - Webinar event recording, audio balancing and editing
  - Live webinar facilitation with pre-event greenroom
  - Presenter training and practice sessions
  - Pre-event lobby for attendees
- Live webinars include the following features: VoIP Audio
  - Back up teleconference line
  - Live Q&A, with management tools
  - Live chat
  - Interactive whiteboards and polling questions

- File sharing

Links to Additional Information on our Services:

Click the following links for a detailed description of each of our services:

Fully Managed Webinar Services Blue Sky Technical & Customer Support

Pricing Table

Initial Term: 9-months. Blue Sky will invoice Client a subscription fee for the products and services outlined below.

Path Set-Up	Price	Qty	Total
Path Platform One-Time St-up Fee Set-up fee includes development for banner/branding creation, webinar registration build-out, assessments, surveys, customized certificates, training on content upload, and additional platform configuration if needed. Set-up fee includes a one-hour training call. • Dedicated Project Manager who will assist with setting up your custom Path portal designed for the registration of upcoming live events and courses. . • Path registration is branded to you and automatically optimizes for display on virtually any device - without additional applications required. • Customer Success Manager to schedule semi-annual calls to discuss strategy.	$3,500.00	1	$3,500.00
API - SSO with freeCME Following the Integration Scope of Work call a quote will be submitted	$0.00	1	$0.00
Auto Renewal Registration Fee Subtotal			$3,500.00
Annual Total			$3,500.00

Blue Sky Services	Annual Qty	Total
Path LMS Enterprise Subscription fee is outlined includes all of the following: • Path subscription includes 22,500 active users during this 9-month period. An active user is defined as an individual who accesses the Path Platform at least one time during a month. • Catalyst Medical Education may have unlimited registerd users within your Path account • Path subscription includes unlimited courses and hosting storage capacity for up to 100 video files (overage outlined below) • Dedicated Client Success Manager who will work with Catalyst Medical Education semi-annual meetings • Support for administrators of Catalyst Medical Education , along with ongoing training, platform documentation and product release webinars • Unlimited technical/customer support for learners through live chat, email and phone • Path License includes unlimited Catalyst Medical Education Path administrators • Continuous Path platform releases, fixes and updates on a bi-weekly and monthly basis • Accessibility compliance, Privacy Shield and GDPR compliance	9 Months	$1,800 per month billed quarterly
eManaged Webinars Up to 90-Minutes in Scheduled Duration Up to 150 Attendees See above for details	Up to 1 Event	$1,125.00
Blue Sky Services Fee:		$2775.00 billed quarterly

Optional Services Available	Price
Add One Presenter Webcam for Live Webinar Video The outlined rate is a per webinar fee, to add this service and will be billed after the completion of the webinar.	$250.00 per webinar
Add Multiple Presenter Webcams for Live Webinar Video The outlined rate is a per webinar fee, to add this service and will be billed after the completion of the webinar.	$500.00 per webinar

Overage Charges	Units	Price
eManaged Webinars For all live webinars above 1 during each 12-month contract year.	Per webinar	$1,125.00
Path eReg Set-Up For all live webinar your Blue Sky Project Manager will set-up your custom registration page for each webinar - above the 1 scheduled	Per webinar	$150.00
eManaged Webinars: Attendee Overage For eManaged webinars with more than 150 attendees, BSE will charge Client an additional $450 to extend the webinar room to up to 600 attendees.	Per webinar	$450.00
eManaged Webinars: Length Overage For eManaged webinars that exceed the contracted amount of time. BSE will charge Client an additional $150 to extend the webinar time 30-minutes.	Per webinar	$150.00

Any programs that do not fit within the parameters above will be quoted on an individual basis.
Subscription billing for the Path system and virtual event services commences on the date outlined in the Payment Terms below "Commencement Date". Commencement Date is defined as the date Blue Sky eLearn begins our work effort.

Path eRegistration™ and Virtual Event Services Duration - The Initial Term shall commence on the Commencement Date and continue for the duration of the term stated above. The contract for this project is good for one-year.

Payment Terms:
Payment of $2,775 will be due upon the execution of this MSA.

Commencement Date: Corresponds with below signature date.

Invoice will be sent upon signing and payable within 30 days.

Contact Person: Louis Settembrino, CHCP
Title: Founder & CEO
Telephone: 732-233-3794
Email: louis.settembrino@catalystmeded.com

Accounts Payable
Contact Information: Louis Settembrino
Address: P. O. Box 1323, Madison, NJ 07940
Telephone: 732-233-3794
Fax: N/A
Email: louis.settembrino@catalystmeded.com

IN WITNESS WHEREOF, the undersigned has read the Terms and Conditions and has executed this service agreement as of the date last entered below.

Louis Settembrino

Signature: _____ Date: 03/29/2019

Printed Name: Louis Settembrino Title: Founder & CEO

Please contact at Blue Sky eLearn with any questions:
Sandy Pocernich
spocernich@blueskyelearn.com
858-900-2288

This Master Services Agreement (the "Agreement") is made and entered into by and between Blue Sky eLearn, LLC, a Delaware Corporation with its principal offices located at 5930 Cornerstone Court W, Suite 270, San Diego, CA 92121 ("BSE"), and the customer ("Customer"). This Agreement is effective on the date that the Customer accepts this Agreement by signing, physically or electronically, a copy of an Agreement. In consideration of the herein promises and other valuable consideration, the receipt and sufficiency of which are hereby acknowledged, BSE and Customer (each a "Party" and collectively, the "Parties") hereby agree as follows:

Definitions

"Active User" is defined as an individual who accesses the Path Platform at least 1 time during the month. An active user may access the site an unlimited amount of times during the month they are active.

"Application" shall mean the computer programs used to provide the Services, including, but not limited to Path LMS, as more fully described in the Schedules, and further includes, without limitation, all components, elements, features, interfaces, libraries, plug-ins, tools, diagnostic tools, versions and all updates, enhancements, releases, patches, modifications, error corrections, upgrades and derivative works made by BSE or on BSE's behalf.

"BSE Materials" means technology, software, including the Application, products, materials, tools, methodologies, ideas, concepts, know-how, techniques, trademarks or other proprietary materials or information which are owned or licensed by BSE (other than the Customer Materials) or which are developed incident to the Services by or on behalf of BSE, including, but not limited to, the deliverables, results, manner of delivery or content of the Services. For the avoidance of doubt, BSE Materials specifically excludes the Customer Materials.

"Customer Materials" means the content, text, documentation, artwork, logos and other materials provided by Customer to BSE for hosting, access, display, streaming and publication through the Services.

"Event" means the live event hosted and streamed by BSE for Customer through the Application as part of the Services.

"Force Majeure" means acts or events beyond BSE's reasonable control, including without limitation, acts of God, war, vandalism, sabotage, accidents, fires, floods, strikes, labor disputes, mechanical breakdown, Internet disruptions, utility disruptions, destruction, theft or impairment of the recording media, shortages or delays in obtaining suitable parts or equipment, materials, labor or transportation, acts of subcontractors, acts of any unit of government or governmental agency or any similar cause.

"Intellectual Property Rights" means all United States and worldwide trademarks, service marks, trade dress, logos, copyrights, rights of authorship, inventions, patents, rights of inventorship, moral rights, rights of publicity and privacy, trade secrets, rights under unfair competition and unfair trade practices laws, and all other intellectual and industrial property rights related thereto.

"Service Fees" means the fees payable by Customer to BSE for the Services, as more fully set forth in the applicable Schedule.

"Services" means the services to be performed by BSE pursuant to this Agreement, as more fully set forth in the applicable Schedule.

"Schedule" means the schedule to be entered into by the Parties, which in each case shall set forth, as applicable, the Services to be performed by BSE and corresponding Service Fees, and if applicable, deliverables, milestone delivery schedule and milestone payment schedules, as the case may be. Upon execution by both Parties, each such executed Schedule shall be attached to this Agreement and fully incorporated herein by this reference.

Schedules

Adoption of Schedules. The Parties may enter into one or more Schedules for the Services that Customer desires for BSE to perform. A Schedule shall be separately agreed by both Parties to be valid. BSE shall issue each new Schedule electronically and Customer shall indicate its acceptance by signing, physically or electronically, a copy of the Schedule issued by BSE. Once a given Schedule has been agreed by the Parties, it shall be incorporated into and governed by the terms and conditions of this Agreement.

Help Desk

Help Desk Support Services. Unlimited email and chat support will be provided to end users during normal business hours.

Blue Sky Event Services

Performance of Services if customer uses BSE virtual and webinar event services.

Customer Responsibilities. Customer shall be responsible for providing to BSE in an accurate and timely manner all Customer Materials as necessary for BSE to perform the Services. Unless agreed otherwise, Customer Materials should be delivered at least TWO business days prior to the corresponding Event. Customer shall provide BSE with reasonable support and assistance in connection with the provision of Services by BSE under this Agreement, including, without limitation, access to the Event speakers, Event coordinators and other required resources. Any changes to the initial Event information must be received in writing at least 2 business days prior to the Event. BSE shall not be responsible for any failure to comply with Customer's reasonable change requestwithout 2 business days' written notice of each such changes. Customer agrees to provide the necessary Event material via direct upload to BSE's Path LMS, email or CD-ROM in advance of the Event if BSE is responsible for delivering the Event material. Customer agrees to work with BSE to ensure attendees have adequate access to login/conference call information and any other details attendees need before any web Event. If Customer has additional handouts or material for the post-Event archive, BSE may delay the production of the archive until it is received. BSE shall not be responsible for any delay or partial or full nonperformance caused by the failure or delay of Customer in providing the necessary Customer Material. A Customer will be considered in Inactive status if BSE does not get a response from Customer within 7 days from BSE's request. An Inactive Customer will be removed from the working project calendar and will be placed back on the project calendar at the next available opening when the communication and/or materials are received by BSE. Any corrections performed by BSE to materials used for an Event arising from Customer's first round of comments shall be included in the contracted Service Fees. Additional requests for corrections and changes outside of the initial correction request from Customer will be billed at $150/hr.

Telephone Help Desk Support Services. Events that include technical support will be staffed on the assumption that no more than 5% of participants will contact Technical Support during the Live Event. Phone support will be provided during regular business hours and for afterhours Events, and technical support will be staffed from one hour prior to the Event to 30 minutes after the conclusion of the Event. For Events that require special technical support staffing, BSE can provide additional support at $75 per dedicated Support Technician per hour.

Changes and Corrections of Archived Web Event. All changes and corrections sent by Customer for the archive will be in electronic format only. BSE will use commercially reasonable efforts to deliver an archived product without errors. However, if errors are found, BSE will promptly correct all the errors for no charge as long as all corrections are delivered by the Customer in the Customer's first round of comments following BSE's delivery of the archived product. Additional Corrections that were not requested by Customer in its initial comments following BSE's delivery of the archived product are considered "Changes" and will be billed at our production rate of $150/hr.

Changes. Customer shall be responsible for any Changes to the archive beyond BSE's standard product. Changes include any additional editing, reformatting or color adjustments from the native content received by BSE. Additional requests for cuts or edits, regardless of reason, are considered Changes. All Changes will be billed at the $150/hr rate. Notwithstanding the foregoing, BSE shall not be required to make any Changes to the work product after it has delivered the final archived product to Customer. Any Changes will be communicated by BSE in a Change Order and, upon Customer's signature to such Change Order, will become a referenced addendum to the Agreement. BSE will not perform any Changes without Customer's prior approval of the corresponding Change Order.

Events Rescheduling or Cancellations
Rescheduling Fee – Less than 24 hours from the Event start.....15% or minimum $150
Cancellation Fee – Less than 24 hours from the Event start.....50%
Cancellation Fee – More than 24 hours, but less than 90 days from the Event start .....15% or minimum $150
No-Show Cancellation Fee – Less than 30 minutes from Event start.....100%

Event Training Sessions with presenters
Rescheduling Fee – Less than 24 hours of the training start.....$35
Cancellation Fee – Less than 24 hours of the training start.....$35
No-Show Cancellation Fee – Less than 30 minutes from training start.....$75

Minimum Event Commitment. In the event you agree to a minimum Event commitment for use of the Services during the term of the Agreement ("Minimum Event Commitment") and do not meet your Minimum Event Commitment in any given month, quarter or year, as applicable, Blue Sky eLearn shall invoice for, and you shall pay, upon receipt of invoice, the shortfall equal to the difference between the Minimum Event Commitment during each applicable term less any Service Fee payments for Events BSE delivered as part of the Services during each applicable period during the term of the Agreement.

Participant and Duration Overages. BSE will not be held responsible for Event duration or audience capacity. Should the Event duration exceed the contracted terms, BSE will provide a grace period of 15 minutes. Once the grace period has been exceeded, the Customer will be charged the price of the additional 30 minute bundle according to the current price sheet, unless special pricing was given to the Customer. Customer will be charged for additional 30-minute bundles for each duration extension thereafter.

BSE offers an allowance of 15 available audience logins, ("seats") beyond the contracted audience size. Should the number of seats exceed the allowance, Customer will be charged the price of the appropriate product according to the current price sheet.

International Callers. BSE will provide phone numbers for various countries through out the world. BSE is not responsible if a participant is unable to properly connect to these calls.

Proprietary Rights

License Grant to Services. Subject to all terms and provisions of this Agreement, including timely payment of the Service Fees, BSE hereby grants to Customer a non-exclusive, non-transferable, revocable license, without the right to sublicense except as specifically set forth below, to use the Services as more fully set forth on the Schedules. Customer may not assign, rent, lease, sublease, grant a security interest in license or sublicense or otherwise transfer any rights in the use of the Services except that Customer may extend the right to access certain Services to Customer's members, employees or other designees solely as necessary to use the Services for the purposes as described in the applicable Schedule. Customer is responsible for obtaining and maintaining all computer hardware, software and communications equipment needed to access any portion of the Services made available via the Internet, and for paying all third-party access charges incurred while using the Service.

BSE Ownership. Customer agrees that BSE shall own and retain all right, title, and interest to the Services, and all components thereof, including the Application, the source code to the Application and all related programming and code, and to all other BSE Materials and to all Intellectual Property Rights related thereto, but excluding specifically any Customer Materials as may be hosted, stored or displayed through the Services.

Prohibitions and Restrictions on Use. Customer is prohibited from reselling the Services or acting as a service bureau capacity. Customer shall not attempt to reverse engineer, modify, decompile, disassemble, translate or seek to derive source code from any part of the Services, the Application or any related software. Customer shall not remove, alter or obscure any of BSE's or its licensors' copyright or proprietary rights notices delivered, provided or displayed incident to the Services.

License Rights to Customer Materials. Customer hereby grants to BSE, for the term of this Agreement, a non-exclusive, fully-paid, royalty-free, worldwide license, with the right to sublicense, to record, adapt, edit, host, cache, store, archive, index, crawl, create algorithms based on, modify, transcode, reproduce, distribute copies of, perform and display the Event and Customer Materials solely as necessary to deliver the Services.

Customer's Rights. Customer retains ownership of all right, title and interest in and to the Customer Materials and shall retain the copyright to any archived versions of the Event and any Customer Materials stored, published and performed as part of the Services.

Customer is responsible to ensure that all Customer Materials do not infringe any Intellectual Property Rights of third parties, including by way of violation of copyrighted video, audio, photographs or other images. Customer will be responsible for collecting the Event slides that are approved for publishing. Notwithstanding the foregoing, Customer agrees that BSE shall have the irrevocable right to use Customer's name and identity information as well as general descriptions regarding Events performed during Services hereunder for BSE's marketing and business development purposes, including but limited to, using such information in BSE's marketing materials, customer listing and advertisements.

Digital Millennium Copyright Act. The Application is solely a platform that allows Customer to upload, modify, view and provide access to Customer Materials. In the event Customer uploads content not owned by Customer or that Customer is not legally entitled to use, and upon receipt of a claim regarding the same from the copyright owner of such material, BSE may remove such material in compliance with the Digital Millennium Copyright Act. Customer understands that BSE adheres to the Digital Millennium Copyright Act.

Handling of Customer Materials. After delivery of the final Event archive to Customer and termination of this Agreement, BSE may in its sole discretion delete or remove from its servers and files all information or materials it has gathered or formulated to create and to otherwise provide the Services under this Agreement. BSE shall have no responsibility to notify Customer that it will be deleting or removing the information and materials as set forth herein. If Customer has provided BSE with additional Customer Material to be used for the Event or archive, BSE will use commercially reasonable efforts to return these materials at Customer's shipping expense upon completion of the production, provided that BSE may retain and use one copy thereof incident to the license granted herein to BSE.

Financial Provisions

Payment. Customer shall pay either the full annual amount of the Service Fees set forth on the corresponding Schedule in advance or, with the written approval of BSE, may make monthly payments of the corresponding Service Fees. If BSE approves monthly payments, the Customer hereby authorizes BSE to make an automatic, recurring monthly charge for that month's Service Fees as set forth on the schedule. Such charge may be made via credit card, debit card, wire transfer, ACH transfer or such other method as will permit BSE to process such payments. If at any time Customer is delinquent in the payment of any invoice or otherwise is in breach of this Agreement, BSE may refuse to provide further Services until such time as such delinquent payment is paid in full or such breach is remedied to BSE's sole satisfaction, and may require Customer to pre-pay any additional Services. If Customer stops or voids any payment to BSE, claims a credit for credit card payments for Services already rendered, or in any way impedes BSE's ability to collect Service Fees for Services already rendered, BSE shall be entitled to interest in the amount of 1.5% per month, plus the cost of collections and related attorneys' fees until all due amounts are paid in full. Any features or upgrades to the Services will be provided as agreed in writing.

Should Client exceed 1TB of bandwidth usage in one month, Blue Sky reserves the right to charge an overage fee.

Warranty and Disclaimer

Infringement Warranties. Customer hereby represents and warrants to BSE that Customer either owns or has obtained written permission or other authorization from the rightful owner of all Customer Materials provided to BSE, and is legally entitled to provide such Customer Materials to BSE and to grant to BSE all license rights herein without violating any duties, or obligations to any third party or infringing on any third party's Intellectual Property Rights. Customer further represents and warrants to BSE that Customer has obtained or will obtain, prior to each Event, all licenses, releases, assignments and transfers of rights in all multimedia presentations and related materials (including, without limitation, handouts,

Presentation slides and any included video, audio, photographs or other images) from such speakers or other persons that will be recorded, or such other third persons as are necessary for BSE to perform the Services without violating any Intellectual Property Rights of third parties.

Content Warranties. Customer hereby represents and warrants to BSE that Customer will not publish, post, upload, record or otherwise transmit content that (i) violates any law, statute or ordinance; (ii) is defamatory, trade libelous, unlawfully threatening or unlawfully harassing; (iii) is profane, indecent, obscene, harmful to minors or contains pornographic depictions; (iv) contains any viruses, Trojan horses, worms, time bombs, cancelbots, corrupted files or other computer programming intended to damage, detrimentally interfere with, surreptitiously intercept or expropriate any system, data or personal information or property of another ("Malware"). BSE reserves the right to cease distribution of any Customer Materials or Event at any time in its sole discretion. Customer further warrants to BSE that BSE's use of the Customer Materials for the Services, including, but not limited to, the duplication, distribution, streaming or publication of such materials, as permitted herein, will not violate any laws applicable to such materials.

Allocation of Liabilities

Mutual Indemnification. Each Party agrees to indemnify, defend and hold harmless the other Party and its Affiliates, and their directors, officers, employees, agents, successors and assigns (collectively, the "Other Party Indemnitees") from and against all liabilities, losses, damages and costs (including reasonable attorneys' fees) (collectively, "Losses") they may suffer as the result of third party claims, demands, actions, suits or judgments against them resulting from or arising out of:(i) any breach of the indemnifying Party's representation or warranties under this Agreement, (ii) any violations of laws or regulations applicable to the indemnifying Party's products or services or any product liability or other claims associated with the indemnifying Party's products or services, and/or (v) negligence or willful misconduct of the indemnifying Party or its employees. Without limiting the foregoing, Customer shall be solely responsible at its own expense for obtaining all necessary licenses or permissions required by BSE to perform the Services hereunder relating to the audio or visual content provided to Company. BSE may, at its discretion and upon reasonable belief, take any reasonable action it deems necessary if Customer's conduct or Content fails to conform with this Agreement or may create liability for BSE or its suppliers.

DISCLAIMER. BSE DOES NOT MAKE ANY WARRANTIES, AND EXPRESSLY DISCLAIMS ALL WARRANTIES, EXPRESS, IMPLIED OR OTHERWISE, CONCERNING THE APPLICATION AND/OR ANY SERVICES PROVIDED HEREUNDER, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTY ARISING BY STATUTE OR OTHERWISE IN LAW OR FROM A COURSE OF DEALING OR USAGE OF TRADE, WARRANTIES OF MERCHANTABILITY, OR OF MERCHANTABLE QUALITY, OR OF FITNESS FOR ANY PURPOSE, PARTICULARLY, SPECIFIC OR OTHERWISE, OR OF NON-INFRINGEMENT OF THIRD PARTY RIGHTS. BSE FURTHER DISCLAIMS ANY WARRANTY THAT THE SERVICES WILL BE FREE OF MALWARE OR WITHOUT INTERRUPTION. BSE ASSUMES NO LIABILITY OR RESPONSIBILITY FOR ANY ERRORS OR OMISSIONS IN THE APPLICATION OR THE SERVICES.

LIMITATION OF LIABILITY. BSE SHALL NOT BE LIABLE FOR ANY DAMAGES OF ANY KIND WHETHER DIRECT, CONSEQUENTIAL, INCIDENTAL, INDIRECT, SPECIAL OR EXEMPLARY, INCLUDING, WITHOUT LIMITATION, ANY LOSS OF USE, LOSS OF BUSINESS OR LOSS OF PROFIT OR REVENUE THAT ARISES OUT OF OR IN CONNECTION WITH THIS AGREEMENT IN ANY MANNER, INCLUDING, BUT NOT LIMITED TO, THE SERVICES PROVIDED OR TO BE PROVIDED BY BSE. THIS LIMITATION APPLIES WITHOUT REGARD TO THE FORESEEABILITY OF DAMAGES. ALL LIMITATIONS SET FORTH IN THIS SECTION APPLY TO ALL CAUSES OF ACTION AND CLAIMS BY CUSTOMER. BSE DOES NOT CONTROL, NOR CAN IT CONTROL, THE FLOW OF DATA TO OR FROM INTERNET SERVICE PROVIDERS, TELECOMMUNICATIONS PROVIDERS AND OTHER PORTIONS OF THE INTERNET OR THE CUSTOMER'S OWN INTERNAL SYSTEMS, INCLUDING INTRANETS AND OTHER WIDE AND/OR LOCAL AREA NETWORKS (COLLECTIVELY, "INTERNAL SYSTEMS") AND ACCESS SYSTEM. SUCH FLOW DEPENDS IN LARGE PART ON THE PERFORMANCE OF INTERNET AND INTERNAL SERVICES PROVIDED OR CONTROLLED BY THIRD PARTIES INCLUDING, WITHOUT LIMITATION, THE CUSTOMER (COLLECTIVELY, FOR THE PURPOSES OF THIS DISCLAIMER, "THIRD PARTIES"). AT TIMES, ACTIONS OR INACTION CAUSED BY SUCH THIRD PARTIES MAY PRODUCE SITUATIONS IN WHICH A PARTY'S CONNECTIONS TO THE INTERNET, ACCESS SYSTEM, OR INTERNAL SYSTEMS (OR PORTIONS THEREOF) MAY BE IMPAIRED OR DISRUPTED, AND BSE CANNOT GUARANTEE THAT SUCH EVENTS WILL NOT OCCUR. ACCORDINGLY, BSE DISCLAIMS ANY AND ALL LIABILITY RESULTING FROM OR RELATED TO SUCH EVENTS. BSE SHALL NOT BE LIABLE TO THE CUSTOMER, ANY AUTHORIZED USER, OR ANY OTHER THIRD PARTY FOR ANY CLAIMS OR DAMAGES THAT MAY BE SUFFERED BY THE CUSTOMER, ANY AUTHORIZED USER OR ANY SUCH THIRD PARTY, INCLUDING, BUT NOT LIMITED TO, LOSSES OR DAMAGES OF ANY AND EVERY NATURE, RESULTING FROM THE LOSS OF DATA, INABILITY TO ACCESS THE INTERNET OR INTERNAL SYSTEMS, OR INABILITY TO TRANSMIT OR RECEIVE INFORMATION, CAUSED BY, OR RESULTING FROM, DELAYS, NON-DELIVERY, OR SERVICE INTERRUPTIONS, WHETHER OR NOT CAUSED BY THE FAULT OR NEGLIGENCE OF BSE. BSE SHALL NOT BE RESPONSIBLE FOR THE SERVERS NOT BEING ACCESSIBLE ON

THE INTERNET OR ON ITS INTERNAL SYSTEMS DUE TO CIRCUMSTANCES NOT IN THE DIRECT CONTROL OF BSE SUCH AS, WITHOUT LIMITATION, THE CUSTOMER'S OR ANY OTHER THIRD PARTIES, INCLUDING AN INTERNET SERVICE PROVIDER'S, EQUIPMENT CAPABILITIES.

Term and Termination

Term. The standard term of this Agreement shall be 1 years unless stated otherwise on customer agreement.

Termination. This Agreement shall automatically terminate without notice upon the occurrence of any of the following: (i) the failure by Customer to pay any amount due hereunder by the due date therefor, and failure to cure such breach within thirty (30) days after BSE's written notice; (ii) the cessation of business by Customer; or (iii) Customer makes an assignment of Customer's business for the benefit of creditors, a petition in bankruptcy is filed by or against Customer, a receiver, trustee in bankruptcy, or similar officer is appointed to take charge of all or part of Customer's property, or Customer is adjudicated bankrupt.

Effect of Termination. If BSE terminates this Agreement as permitted herein, Customer shall forfeit all Service Fee amounts previously paid. If Customer will be responsible for any out of pocket costs incurred by BSE, charges for remaining or completed Events and remainder of term for the Application or other Internet usage. BSE shall have no further obligation to maintain Customer's data after termination or cancellation of this Agreement provided that BSE shall only be required to deliver a final Event archive to Customer upon receipt, on or before the date of termination, of all amounts remaining due from Customer hereunder.

Cumulative Remedies. All rights and remedies conferred herein shall be cumulative and in addition to all of the rights and remedies available to each party at law, equity or otherwise.

Miscellaneous Provisions

Entire Agreement. This Agreement, together with all Schedules which will be attached hereto, from time to time following mutual execution thereof, constitutes the entire agreement between the Parties hereto with respect to the subject matter hereof and supersedes all prior agreements and understandings, oral and written, between the Parties hereto with respect to the subject matter hereof. No amendment, modification, or waiver of this Agreement shall be binding on either Party unless accepted and signed, physically or electronically, by each Party's respective officer.

Dispute Resolution. This Agreement is deemed entered into and performed in the State of California and shall be interpreted in accordance with its laws (without reference to principles of conflict of laws). If a dispute arises out of or relates to this Agreement or the breach thereof and that cannot be settled through negotiation, the parties agree first to try to settle the dispute by mediation. The mediator shall be mutually selected and agreed upon by the parties. If the parties are unable to resolve their dispute by mediation within 30 days after service of the request for mediation upon all of the parties to the dispute, the parties agree that any controversy or claim arising out of or relating to this Agreement, or the breach thereof, shall be resolved by arbitration before a single arbitrator in San Diego, California. Any judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof. The Arbitration shall be conducted pursuant to the Customer's Commercial Arbitration Rules ("Rules"), but shall not be administered by the Customer. Any and all determinations normally made by the Customer under the Rules shall instead be made by the appointed arbitrator. Under no circumstances shall any party to this Agreement be responsible for the payment of any administrative fees to the Customer in connection with the dispute resolution procedures of this Agreement. The parties shall identify a mutually acceptable arbitrator.

Force Majeure. BSE is not responsible for the consequences to the quality or availability of the Event or the Services for circumstances not completely within its control, such as the effect on sound and video quality caused by ambient noise, faulty Internet connections, utility failures, speaker conduct and other unplanned events, other sound or video quality issues. BSE is further not responsible for any other delay or failure in performance of the Services caused by Force Majeure events. BSE's performance under this Agreement shall be excused during a Force Majeure event.

Non-Solicitation of Employees. For a period of one year following the contract termination date, the Customer shall not, directly or indirectly, induce or attempt to induce, any employee of BSE to end or diminish his/her relationship with BSE, or solicit or attempt to solicit any employee of BSE for outside employment, or to any other person for the purpose of assisting any third party to solicit BSE's employees for outside employment.

Binding Effect; Assignment. This Agreement and all of the terms, provisions and conditions hereof shall be binding upon and inure to the benefit of the Parties hereto and their respective successors and permitted assigns.

Waiver. A failure of either Party to this Agreement to enforce at any time any of the provisions of this Agreement, or to require at any time performance of any reeleof the provisions hereof, shall in no way affect the full right to require such performance at any time thereafter. No waiver shall be deemed a waiver of any other breach of the same or any other term or condition hereof.

Severability. In the event that any one or more provisions of this Agreement shall for any reason be held by any tribunal of competent jurisdiction to be invalid, illegal or unenforceable, the remaining provisions of this Agreement shall be unimpaired, and each invalid, illegal or unenforceable provision shall be treated by the tribunal as modified to the least extent necessary to rectify its invalidity, illegality or unenforceability and shall be enforced as so modified.

Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original instrument and all of which together shall constitute a single agreement.